

Court No. - 37

Case :- WRIT - C No. - 38178 of 2017

Petitioner :- Nagendra Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Amit Kumar Srivastava

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Rajiv Lochan Mehrotra,J.

The contention raised by the petitioner is that he has paid the entire bills and nothing is due against him, yet the respondents are harassing the petitioner.

The petitioner has relied on the judgment dated 12th April, 2017 of Writ Petition No. 12748 of 2017 to urge that since the assessment proceedings have been not carried out in accordance with the provisions of the U.P. Electricity Supply Code 2005 read with the U.P. Electricity Act, 2003, therefore, the same deserves to be quashed.

From the records that have been placed on the writ petition, it appears that the recovery notice is based on an alleged electricity theft by the petitioner.

Learned counsel submits that the said demand notice on the basis of theft is absolutely unjust and against the fact that the petitioner has deposited the entire bills. The petitioner has relied on certain receipts, copies whereof have been filed as Annexure no. 1 to the writ petition.

The petitioner may approach the respondent no.3 along with a certified copy of this order who shall examine the claim of the petitioner and pass an appropriate order as it is the third respondent who under the 2005 Code is empowered to look into such billing grievances. In the event, the respondent no.3 finds that the petitioner has cleared of the dues then appropriate directions shall be issued but in the event, if any dues are found against the petitioner, it will be open to the respondent no. 3 to facilitate payment, keeping in view the provisions of Clause 6.14 of the 2005 Code in accordance with law.

The writ petition is accordingly **disposed off**.

Order Date :- 24.8.2017

M. ARIF